



U.S. Department
of Transportation

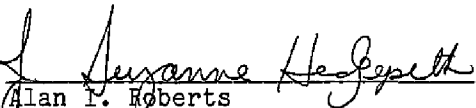
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8397 (EXTENSION)
SECOND REVISION June 3, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8397 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan P. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 23 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Mauser Packaging, Limited
Palm Beach Gardens, FL

February 26, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 8397
(SECOND REVISION)

1. Mauser Packaging Ltd., New York, N.Y., is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell, the packaging described in paragraph 7 below for use in the transportation of the various dry hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of a non-reusable, molded polyethylene drum with removable head, with capacities of 8, 16, 32 and 40 gallons, for shipment of phosphorous pentachloride, various corrosive solids, oxidizers, an ORM-C and, materials presently authorized in a DOT Specification 35, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Mauser Packaging Ltd's applications dated May 18, 1984, and July 24, 1984, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Phosphorous pentachloride, classed as corrosive material; materials classed as oxidizers in 49 CFR 173.217; materials classed as corrosive solids in 49 CFR 173.245b; dry or paste substances, except organic peroxides, in 49 CFR 173.154, for which DOT Spec. 35 drum is authorized; calcium cyanamide, not hydrated (containing more than 0.1% calcium carbide) classed as ORM-C; sodium chlorite, classed as oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Phosphorous pentachloride; sodium chlorite; oxidizer n.o.s.; corrosive solid n.o.s.; or the specific chemical name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.154, 173.160, 173.191, 173.217, 173.245b, 173.945, 178.16.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is non DOT specification, non-reusable, molded polyethylene drums with fully removable head, having capacities of eight, 16, 32 and 40 gallons. Drums are to be molded of linear, high molecular weight, high density PE having the material properties and minimum wall thickness given in petitioner's application dated March 31, 1980, and also each be marked to show rated gross weight. Drums closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.16-13, except that the compression test must be at 800 pounds, 1200 pounds, 1800 pounds, and 2400 pounds for eight-, 16-, 32 and 40 gallon drums, respectively.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation (OHMR) as soon as practicable.

10. EXPIRATION DATE. July 10, 1986.

Issued at Washington, D.C.:

JUN 3 1985



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau. Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: USCG, FHWA, FRA.